

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY INTERGLOBAL NETWORK, LLC, *Complainant*

v.

SHENZHEN UNIFELIX SCM LIMITED, *Respondent*.

DOCKET NO. 22-28

Served: June 8, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REVISED SCHEDULING ORDER

On June 6, 2023, the parties filed an unopposed motion to extend brief and other deadlines (“Motion”). The parties state that they have propounded and responded to written discovery, exchanged over 1,000 pages of documents, and disclosed experts. However, they have not completed document production or scheduled depositions and state that “it does not appear that the parties will be able to complete discovery by the stated deadline, which means that they will not be able to adequately present their case in their respective briefs.” Motion at 1. The parties request a 120-day extension of the deadlines.

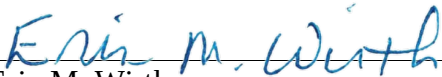
The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The requested extension is unreasonable. Pursuant to Commission Rule 141, discovery must be completed within 150 days of the service of a respondent’s answer. 46 C.F.R. § 502.141. Here, the parties request almost ten months from the answer to complete discovery. The parties need to expeditiously produce documents, schedule depositions, and provide expert reports. The parties are encouraged to stipulate to facts, agree to limitations on depositions, and work together to complete discovery in a timely fashion. The parties are again reminded that the Commission stated that the initial decision should be issued by October 21, 2023. Accordingly, the 120-day extension is denied and an extension of 45 days is granted. The parties should presume that additional requests for extensions will not be granted and should be prepared to proceed to briefing without additional delays.

The parties are hereby **ORDERED** to follow this schedule:

August 3, 2023	Depositions completed.
August 3, 2023	Close of all discovery.
August 24, 2023	Parties exchange exhibit list and deposition designations.
August 31, 2023	Complainant's brief, proposed findings of fact, and appendix.
September 28, 2023	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
October 12, 2023	Complainant's reply brief and responses to proposed findings of fact.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.


Erin M. Wirth
Chief Administrative Law Judge